Letter From the Chair

Dear Delegates,

Welcome to RavenMUN! I am Arman Kasnavi, and I am very excited to welcome you all to this meeting of the Disarmament and International Security Committee (DISEC) on private military companies! The modern battlefield has continued to evolve rapidly, and these private military contractors have become increasingly commonplace in conflict zones throughout the world. Whether it is the deployment of the Wagner Group to West Africa, or G4S, which employs over 620,000 private contractors throughout the world. And yet, as these private interests become increasingly involved in conflict and wars throughout the world, states and the global community must come together to tackle the question and challenges surrounding these contractors. In committee, we will tackle these challenges, such as the legal status of these contractors, the struggles with holding them accountable, and how to regulate them. I look forward to seeing you make use of diplomacy and problem solving to tackle this topic. Best of luck!

Your Chair,

Arman Kasnavi (armankasnavi@gmail.com)

I. Key Terminology

1. ***Private Military Company*** *- A private company or firm providing armed security, training, or other combat support services for hire.*
2. ***Mercenary*** *- A professional soldier hired to serve in a foreign army.*
3. ***Contractor*** *- a person or company that undertakes a contract to provide materials or labor to perform a service or do a job.*
4. ***Mercenary firm*** *- A form of private military company focused on providing military personnel for armed conflict.*
5. ***Combatant*** *- a person or nation engaged in fighting during a war.*
6. ***Civilian*** *- a person who is not a member of the armed forces.*

II. Background

In order to dive further into the history and modern status of private military companies, it is first important to understand what a private military company is. Private military companies, sometimes abbreviated as PMCs, are private companies which specialize in providing security services similar to the duties typically carried out by the military or police. Examples of these services often include basic security and protection, training, military intelligence services, and logistics. More importantly however, private military companies often provide manpower for hire that warring states can contract to fill their ranks and aid them in their fight. This particular subset of a PMC's service has become increasingly popular and has grown to dominate the industry, with the modern titans of the PMC industry such as the companies G4S and Wagner Group focusing almost

entirely on recruiting and contracting large fighting forces of these private ‘soldiers’ to aid countries in wars across the globe. Wagner Group specifically has risen to particular amounts of fame in recent years thanks to its public role as a contractor in the war in Ukraine, as well as its expanded presence in conflict zones in Africa, especially in the Sahel and Sub-Saharan Africa.

Wagner Group forces deployed in Mali,. July 2023

As private military contractors have shifted from more specialized security and training roles in their contracts, towards behaving as large military forces for hire, more and more issues surrounding their legal status and regulations have come into the spotlight. The nature of private military contractors gives them a uniquely muddled legal status on the battlefield, as their employees are still legally civilians under the employment of a private, civilian entity, which has been contracted by a government or individual. However, these contractors are becoming increasingly incorporated into the armed forces, such as with the integration of Blackwater contractors into American operations in Iraq in the early 2000s, which further complicates their legal status by making them de facto combatants. International humanitarian law argues that PMCs can be classified as

combatants if they can be legally defined as being integrated into the armed forces of a contracting state, but this integration is extremely difficult to legally define. Furthermore, due to their gray legal status, it is extremely difficult to hold these contractors accountable for crimes they may commit, including war crimes. Since they are still under the employ of a private entity, they often fall outside of the jurisdiction of military police and court martials, seen in the inability of American military courts to convict contractors for their crimes in Iraq.

Blackwater (now Constellis) contractors in Iraq, c. 2004

Modern PMCs have effectively morphed into so-called 'mercenary firms', with the largest companies having almost entirely shifted towards contracting groups of trained, professional fighters to conflict zones to help bolster the contracting party's armed forces. This has resulted in greater numbers of private military company personnel becoming involved in open armed conflict in war zones throughout the world, as they increasingly become used as a for-hire manpower pool of foreign soldiers. Essentially, private military companies are becoming increasingly focused on providing a source of for-hire soldiers that have become involved in conflict zones around the world, effectively turning them from civilian security advisers into combatants

III. UN Action

The Charter of the United Nations has not been passive in engaging with this topic and has held debates surrounding the legal status, limitations, and responsibilities of these private entities and how they interact with international law. This includes the 1989 United Nations Mercenary Convention, which was signed by 47 countries (of which 38 have ratified the treaty), and was adopted in 2001. The convention sought to set a clear legal definition of mercenary fighters, and prohibited their recruitment and use. The convention defines mercenaries as, "any person who: Is specially recruited locally or abroad in order to fight in an armed conflict; Is motivated to take part in the hostilities essentially by the desire for private gain and, in fact, is promised, by or on behalf of a party to the conflict, material compensation…". Although this convention did effectively address the issues with mercenarism, albeit with limitations, it did not have sufficient breadth to also address the issue of PMCs. The UN has since moved to support debates around regulating PMCs and their legal status, such as with a UNHRC working group report in 2018 which sought to gather information surrounding the legal distinctions of a PMC and previous attempts to regulate them. These efforts have continued through recent years, including in a 2024 convention of the United Nations General Assembly in which multiple delegations from nations around the world moved to express support for the creation of a legally-binding framework that would include legal distinctions and regulations for private military companies.

Outside of the charter of the United Nations, individual actors have had more limited success in tackling the issue of private military companies. For example, the Swiss government in cooperation with the International Committee of the Red Cross (ICRC)

compiled and published the Montreux Document in 2008, a legally nonbinding list of best practices for states to implement in order to better regulate private military companies within their jurisdiction.

This document serves as an international standard for ways to regulate private military companies and their operations, and many subsequent domestic and international policies and policy debates have consistently referred to it as an example. For example, the document clarifies that as soon as PMC personnel take up arms in any circumstance while under employment, they forfeit their status as civilians and must subsequently abide by, and can be prosecuted under, the international humanitarian laws binding combatants during war. Furthermore, the document encourages states with PMCs operating within their borders to adopt "transparent licensing regimes and implement tools to monitor and ensure accountability for PMCs". Effectively the Montreux Document has come to serve as a key example of how potential legislation could be enacted to expand international law in order to more directly address PMCs, which could greatly reduce the harm they may cause to civilians and help international organizations like the UN better regulate and monitor these entities.

International Committee of the Red Cross

IV. Questions to Consider

Here are some important questions for delegates to consider during this committee:

a. What is the difference between a mercenary and someone working with a PMC?
b. How can PMCs be held legally accountable for their actions in a conflict zone?
c. Should the employer (the contracting state) or the contractor (the PMC) be held accountable for the actions of individual contractors?
d. How do PMCs impact the states/regions they operate in?
e. How should the United Nations be involved in regulating PMCs?

V. Resources

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